

LAW AND MOTION TENTATIVE RULINGS
DATE: SEPTEMBER 17, 2026 TIME: 8:30 A.M.

No. 21CV02996

DODSON v. COWLEY et al.

**(UNOPPOSED) PLAINTIFF'S DEMURRER TO DEFENDANTS' FIRST
AMENDED CROSS-COMPLAINT**

The unopposed demurrer is sustained without leave to amend.

On April 21, 2026, the court ordered that any amended cross-complaint ("FACC") must be filed no later than 20 days from that date and must fully comply with Code of Civil Procedure section 425.10, subdivision (a)(1) and related Rules of Court. The court specified in its earlier ruling that due to the age of this case, no further extensions of time would be permitted and if defendants failed to comply with those deadlines the court would consider dismissing any amended cross-complaint for unwarranted delay. (*Emerald Bay Community Association v. Golden Eagle Ins. Corp.* (2005) 130 Cal.App.4th 1078, 1097.)

Defendants did not file their FACC within that deadline; it was filed 13 court days later, on May 28, 2026. The FACC also fails to comply with section 425.10, subdivision (a)(1) by failing to contain a statement of facts constituting a cause of action in ordinary and concise language.

Therefore, the court grants the demurrer to the FACC without leave to amend for failure to adhere to the court's previous rulings and failure to file a FACC that comports with the Code of Civil Procedure and related Rules of Court. Defendants' FACC is dismissed with prejudice.

No. 25CV01247

STAPLETON v. TAIGMAN, et al.

**DEFENDANT STEVEN MELLO DBA MELLO FLOORING'S MOTION TO SET
ASIDE DEFAULT**

The motion is granted. Cross-defendant's motion includes an attorney declaration of mistake. Cross-defendant is ordered to file his responsive pleading no later than September 25, 2026.

I. BACKGROUND

Defendants/cross-complainants Christine Thorne and Charles E. Thorne III dba Quality Homes obtained a default judgment against cross-defendant Steven Mello dba Mello Flooring

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who now moves to set aside the judgment based on Code of Civil Procedure section 473, subdivision (b).

Timeline:

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| 11/18/25 | Cross-complainants filed against Steven Mello dba Mello Flooring alleging equitable indemnity, contribution, apportionment of fault, and declaratory relief for work he performed on property sold to plaintiff Laura Stapleton. Cross-complainants were the real estate agents on the transaction and employed various trades like Mello to perform work on the property. |
| 12/18/25 | Cross-defendant personally served. |
| 5/12/26 | Default judgment entered by the court. |
| 8/21/26 | Cross-defendant filed this motion asserting his attorney failed to secure a further continuance beyond March 16, 2026, to file a responsive pleading. |

II. DISCUSSION

Cross-defendants’ motion is based on Code of Civil Procedure section 473, subdivision (b), mistake, inadvertence, surprise or excusable neglect. Defense counsel states he obtained an extension of time to answer but then failed to secure a further extension before the default was entered. (Tunink Declaration.)

The moving party bears the burden of proving they are entitled to relief under section 473, subdivision b. The court is empowered to relieve a party “upon any terms as may be just ...from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect.” (§ 473, subd. (b).) Any party to the action or his or her legal representative may seek relief under section 473, subdivision b and relief is mandatory when it is based upon an attorney affidavit of fault.

“The law favors judgment on the merits. Thus, on a motion or relief from default, ‘doubts must be resolved *in favor of relief*, with an order denying relief scrutinized on appeal more carefully than granting it.’” (*Lasalle v. Vogel* (2019) 36 Cal.5th 127, 134.) Relief is proper under section 473, subdivision (b) where defendant (or their attorney) was mistaken as to some fact material to the defendant’s duty to respond. “[W]here the defendant, with full knowledge of the proceedings, and without being misled by the opposing party or counsel, fails to take action to protect his interests until after the default, it is an abuse of discretion to set the default aside. [Cit. omitted.] Nor does the trial court have the legal power to set aside the default simply because the

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defendant did not realize the legal effect of failing to file an answer.” (*Yarbrough v. Yarbrough* (1956) 144 Cal.App.2d 610, 615.)

Cross-defendant’s papers establish an attorney mistake. The motion is granted and cross-defendant is ordered to file his responsive pleading no later than September 25, 2026.

No. 26CV00178

NAVARRO v. CSAA INSURANCE EXCHANGE

(UNOPPOSED) RESPONDENT’S MOTION TO COMPEL DISCOVERY
RESPONSES AND FOR MONETARY SANCTIONS

The motion is granted.

Pursuant to Insurance Code section 11580.2 (“§ 11580.2”), an uninsured motorist claimant must bring their claims through arbitration. (§ 11580.2, subd. (f).) The parties are thereafter entitled to conduct discovery pursuant to the Civil Discovery Act as in an ordinary lawsuit. (*Ibid.*) The Insurance Code adopts the Civil Discovery Act in its entirety and “grants the superior court the exclusive jurisdiction to hear discovery matters arising under uninsured motorist arbitrations.” (*Miranda v. 21st Century Ins. Co.* (2008) 117 Cal.App.4th 913, 926.) The parties also have the right to enforce their discovery by petition and motion in court. (§ 11580.2, subd. (f)(1).)

Claimant Jaime Navarro demanded uninsured motorist arbitration on February 5, 2024, related to a February 7, 2022 collision. Respondent CSAA Insurance Exchange served form interrogatories, special interrogatories, and a demand for inspection on August 11, 2025. Claimant has failed to provide responses and respondent brought a motion to compel, which was heard on May 5, 2026. The Court’s tentative ruling was to grant the unopposed motion. However, claimant appeared at the hearing and petitioner did not. Claimant told the Court he already provided respondent with the requested discovery; the Court accepted this representation and denied the motion as moot. (Minute Order, May 5, 2026.) Respondent did not appear at the hearing because it did not receive notice from claimant that he was challenging the tentative ruling. (Decl. of Coke at ¶¶ 5-6.)

Respondent then re-served the discovery on May 14, 2026, and filed this motion when no responses were received. seeking to compel responses to form and special interrogatories, set